

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: September 21, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

#	Case Name	Tentative
1	Gerald Norris King, Trustee of Gerald Norris King Trust vs. Nguyen 2026-01556411 Demurrer to Cross- Complaint CMC	Plaintiff/cross-defendant Gerald Norris King, Trustee of The Gerald King Living Trust and Cross-defendant Mai Le's (collectively Cross-defendants) Demurrer to Defendant/cross-complainant Dzung Q. Nguyen's Cross-complaint is SUSTAINED with 20 days leave to amend. Uncertain "Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) As Cross-defendants do not identify how the cross-complaint is uncertain, the Court overrules the demurrer on this ground. Third cause of action for promissory estoppel

	"The elements of a cause of action for promissory estoppel are (1) a promise, (2) the reasonable expectation by the promisor that the promise will induce reliance or forbearance, (3) actual reliance or forbearance, and (4) the avoidance of injustice by enforcing the promise." (<i>Fleet v. Bank of America N.A.</i> (2014) 229 Cal.App.4th 1403, 1412.) "The vital principle is that he who by his language or conduct leads another to do what he would not otherwise have done shall not subject such person to loss or injury by disappointing the expectations upon which he acted." (<i>Jones v. Wachovia Bank</i> (2014) 230 Cal.App.4th 935, 945 [citation omitted].) Cross-defendants demur on the ground there are no allegations regarding any promises made by King. Cross-complainant alleges the cross-complaint sufficiently alleges an agency relationship between King and Le. The cross-complaint alleges "Nguyen is informed and believes, and on that basis alleges, that each Cross-Defendant was the agent, employee, servant, partner, joint venturer, alter ego, co-conspirator, or representative of each of the others, and in doing the things alleged herein acted within the course and scope of that relationship." (Cross-compl. ¶ 5.) The cross-complaint further alleges Nguyen relied on representations and promises made by Le "with King's knowledge and benefit," while "[n]o direct dialogue or correspondence took place between King and Nguyen concerning those subjects." (Cross-Compl. ¶ 11.) "An allegation of agency constitutes an averment of ultimate fact, which we accept as true on a demurrer. But where factual allegations are based on information and belief, the plaintiff must allege 'information that 'lead[s] [the plaintiff] to believe that the allegations are true.'" (<i>Brown v. USA Taekwondo</i> (2019) 40 Cal.App.5th 1077, 1106.) While Cross-complainant alleges on information and belief Cross-defendants were agents of each other, he fails to allege additional information to support that belief. The Court SUSTAINS the demurrer to the third cause of action with leave to amend. Fourth cause of action for intentional misrepresentation/ promissory fraud
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		"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [citations omitted].) Cross-defendants demur on the ground the cross-complaint fails to allege facts representations by King and any reasonable reliance by Nguyen. As discussed above, while Cross-complainant contends he has alleged an agency relationship between King and Le, the cross-complaint does not allege sufficient facts to support the allegation of agency. The Court SUSTAINS the demurrer to the fourth cause of action with leave to amend. Sixth cause of action for constructive trust A constructive trust is an equitable remedy and not an independent cause of action. (See <i>Shoker v. Superior Court of Alameda County</i> (2022) 81 Cal.App.5th 271, 278 [citations omitted]; but see <i>Higgins v. Higgins</i> (2017) 11 Cal.App.5th 648, 659, fn. 2.) Cross-complainant may request this remedy as part of a substantive cause of action. The Court SUSTAINS the demurrer to the sixth cause of action with leave to amend to amend.
2	Nano Banc vs. Cantor Group, III, LLC 2025-01496226 Demurrer to Amended Cross Complaint CMC	Plaintiff/Cross-Defendant Nano Banc's (Plaintiff) Demurrer to the First Amended Cross-Complaint (FACC) of Defendant/ Cross-Complainant Cantor Group III (Defendant) is OVERRULED. Plaintiff's request for judicial notice of Court records and County Recorder's Office records (ROA 143) is granted. (Evid. Code § 452(c), (d).) Legal Standard: At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs' asserted claims. (<i>Liapes v. Facebook, Inc.</i> (2023) 95 Cal.App.5th 910, 919.) "[C]ourts may not turn a demurrer into a contested evidentiary matter by determining what the proper interpretation of the evidence is. A court errs when its decision reflects such a consideration of the evidence." (<i>Panterra GP, Inc. v. Superior Court of Kern County</i> (2022) 74 Cal.App.5th